

NEW YORK STATE SUPREME COURT
NEW YORK COUNTY

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AGGRIE PATRICK BYAS,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICERS
SAID SALIM, ABRAHAM GARCIA, RALPH
SHERLOCK, TIMOTHY GARCIA, MICHAEL
INGRAM, WILLIAM SOMMER, and POLICE
OFFICERS JOHN and JANE DOE ONE
through TEN,

Defendants.
-----X

SUMMONS

Index #

TO THE ABOVE NAMED DEFENDANT:

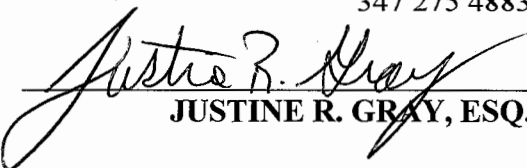
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is that where the cause of action arose New York, New York.

Dated: Bronx, New York
March 18, 2015

PAULOSE PLLC
5676 Riverdale Avenue, Suite 314
Bronx, NY 10471
347 275 4883

By:


JUSTINE R. GRAY, ESQ.

**NEW YORK STATE SUPREME COURT
NEW YORK COUNTY**

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AGGRIE PATRICK BYAS,

Plaintiff,

-against-

COMPLAINT

Index #

CITY OF NEW YORK, POLICE OFFICERS
SAID SALIM, ABRAHAM GARCIA, RALPH
SHERLOCK, TIMOTHY GARCIA, MICHAEL
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OFFICERS JOHN and JANE DOE ONE
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Plaintiff AGGRIE PATRICK BYAS, by his attorneys, Paulose PLLC,
complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought by plaintiff for damages pursuant to 42 USC § 1983. During an unlawful traffic stop, defendants arrested plaintiff without probable cause and then manufactured false evidence, in the form of a gun, in an attempt to justify their actions. Defendants thereafter used the false evidence to maliciously prosecute plaintiff without just cause. As a result of the fabrication of evidence and malicious prosecution, plaintiff was prosecuted and denied a fair criminal proceeding. Plaintiff now seeks redress against the defendants for the unnecessary and unreasonable loss of his liberty and related damages.

STATEMENT OF FACTS

2. On or about July 22, 2011, at approximately 6:00 p.m., while in the vicinity of 148th Street and Bradhurst Avenue, New York, New York, plaintiff, AGGRIE PATRICK BYAS, while driving his motor vehicle and accompanied by three other passengers, was stopped by defendant officers at gunpoint, including but not limited to SAID SALIM, ABRAHAM GARCIA, RALPH SHERLOCK, TIMOTHY GARCIA, MICHAEL INGRAM, and WILLIAM SOMMER.

3. The defendants pulled plaintiff out of his car, directed him to get on the ground, and arrested him.

4. Defendants gave plaintiff no explanation for the stop and arrest.

5. Plaintiff and the other vehicle occupants were then transported to the 30th precinct.

6. There, plaintiff and the other vehicle occupants were separated and questioned by the defendants. At some point during the questioning, defendant SAID SALIM appeared and showed plaintiff a gun that defendant SALIM said he had purportedly found in the car.

7. Defendant SALIM had manufactured the evidence. No person owned or possessed a gun at the time of plaintiff's detainment and arrest. Moreover, defendant SALIM had not discovered the gun at the scene of the arrest. Instead, he claimed to have found it after arriving at the precinct and after the interrogations were well underway or already concluded. And finally, a few days after his release, plaintiff had received a number of phone calls from the 30th precinct asking plaintiff to, "come in for a chat and to pick up his car," although plaintiff had already acquired counsel. In short, defendant

SALIM had planted the gun to justify the unlawful stop and arrest of plaintiff and the other vehicle occupants.

8. Defendant SALIM had testified falsely in at least two judicial proceedings prior to July 22, 2011. On or before April 24, 2007, defendant SALIM was found to be incredible after testifying in a probable cause hearing before the Honorable Roger Hays, in New York County Supreme Court, in *People v. Brandon*, Indictment 694/2006. As a result of defendant SALIM's false testimony in that matter, the prosecutor dismissed the indictment against the criminal defendant.

9. On or about November 22, 2010, defendant SALIM was again found to be incredible this time by the Honorable Marci Kahn, after testifying in a probable cause hearing in *People v. Davis*, Indictment 3447/2009, regarding the seizure of a large quantity of narcotics. As a result of defendant SALIM's false testimony, the prosecutor was forced to dismiss the indictment against the criminal defendants.

10. The City of New York has knowledge of the multiple sizeable settlements paid out to various victims of defendant SALIM's numerous civil rights infractions.

11. Although the City of New York had knowledge of these prior instances of misconduct, defendant SALIM remained an active duty police officer. The City of New York's acquiescence to these facts, which were numerous and occurred prior to plaintiff's incident, caused plaintiff's injury.

12. On or about, April 30, 2014, defendant SALIM himself was arraigned in Part 31, New York Supreme Court, Criminal Term, under Case Number 02004-2014. Defendant SALIM was charged with two counts of Perjury in the First Degree pursuant to Penal Law § 210.15, one count of Official Misconduct pursuant to Penal Law §

195.00, one count of Offering a False Instrument for Filing in the First Degree pursuant to Penal Law § 175.35, and one count of Making a Punishable False Written Statement pursuant to Penal Law § 210.45.

13. Defendant SALIM was arraigned on the above charges for allegedly lying under oath about the circumstances surrounding a drug related arrest. Upon information and belief, defendant SALIM lied under oath, during a grand jury hearing and again at a suppression hearing, in order to create probable cause to support the arrest of two drug defendants. The cases against the aforesaid defendants were dismissed after the prosecutor became aware of defendant SALIM's allegedly falsified testimony.

14. The instant case was similarly dismissed. In or about June 2013, the prosecutor in plaintiff's criminal case refused to pursue the indictment against plaintiff and the matter was dismissed pursuant to NYCPL 30.30.

15. But the harm had already been done. It was defendant SALIM that had drafted and conveyed the false and misleading police reports, including a criminal court complaint, to prosecutors, falsely stating that he had recovered a loaded firearm from the trunk of plaintiff's vehicle, and causing said evidence to be used against plaintiff in a legal proceeding.

16. As a result of the aforesaid false, sworn allegations, plaintiff was first arraigned on false charges in New York City Criminal Court in or about 2011.

17. As a result of the defendants' false allegations in the arraignment proceeding, the New York County District Attorney then presented the aforesaid false evidence to a New York County Grand Jury. At said Grand Jury proceeding, defendants again knowingly gave false testimony under oath.

18. Based upon defendants' knowingly false testimony, the Grand Jury returned an indictment. Accordingly, plaintiff was charged with Criminal Possession of a Weapon in the Second Degree in violation of P.L. §§ 265.03(1)(b) and 265.03(3) – completely fabricated violations. The grand jury would not have returned an indictment if not for the fraud perpetrated by the defendants.

FIRST CLAIM

42 USC § 1983/FOURTH & FOURTEENTH AMENDMENTS

MALICIOUS PROSECUTION

19. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

20. As a direct and proximate result of defendants' actions, plaintiff sustained damages.

21. Defendants initiated, commenced and continued a malicious prosecution against plaintiff by providing false and/or misleading information to the New York County District Attorneys' Office.

22. The aforesaid prosecution terminated when it was dismissed, pursuant to N.Y. C.P.L. § 30.30, on or about June 13, 2013.

23. The dismissal of criminal charges against a plaintiff pursuant to N.Y. C.P.L. § 30.30 is a favorable termination of proceedings.

24. As a direct and proximate result of defendants' actions, plaintiff sustained damages.

SECOND CLAIM

42 USC § 1983/FOURTH & FOURTEENTH AMENDMENTS

DENIAL OF FAIR TRIAL

25. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

26. Defendants created false evidence against plaintiff.

27. Defendants utilized this false evidence against plaintiff in legal proceedings.

28. As a result of defendants' manufacture and use of false evidence, plaintiff suffered a violation of his constitutional right to a fair trial secured by the United States Constitution.

29. As a direct and proximate result of the defendants' actions, plaintiff sustained damages.

THIRD CLAIM

42 USC § 1983/FOURTH & FOURTEENTH AMENDMENTS

MALICIOUS ABUSE OF PROCESS

30. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

31. Defendants issued criminal process against plaintiff by causing him to be arraigned and prosecuted for violations of the Penal Law.

32. Defendants acted with intent to do harm to plaintiff, without excuse or justification.

33. Defendants caused plaintiff to be prosecuted in order to obtain a collateral objective outside the legitimate ends of the legal process, to wit: for professional advancement, overtime compensation, and/or other objectives outside the ends of justice.

34. As a direct and proximate result of the defendants' actions, plaintiff sustained damaged.

FOURTH CLAIM

42 USC § 1983/FOURTH & FOURTEENTH AMENDMENTS

MONELL CLAIM

35. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

36. The City of New York directly caused the constitutional violations suffered by plaintiff.

37. The City of New York was aware from notices of claim, lawsuits, complaints, and from the New York Police Department's own observations, that it was highly likely that the officers involved in the present case would commit the acts alleged in the present case.

38. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, retrain, supervise, discipline, and monitor the defendant officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can maliciously prosecute an individual without consequence.

39. The City of New York's deliberate indifference of plaintiff's Constitutional rights, and their failure to adequately train, supervise, and discipline their officers, was promulgated by the actions of the defendant officers herein on numerous occasions including the incident involving the plaintiff described herein.

40. As a direct and proximate result of the aforesaid conduct by the City of New York, plaintiff sustained damaged.

FIFTH CLAIM

42 USC § 1983/FOURTH & FOURTEENTH AMENDMENTS

FAILURE TO INTERVENE CLAIM

41. Plaintiff repeats, reiterates and realleges each and every allegation contained above with the same force and effect as if fully set forth herein.

42. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

43. The defendants failed to intervene to prevent the unlawful conduct described herein.

44. As a direct and proximate result of the defendants' actions, plaintiff sustained damaged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff requests that the Court grant the following relief jointly and severally against defendants:

1. Compensatory damages in an amount to be determined at trial;

2. Punitive damages in an amount to be determined at trial;
3. An order awarding attorneys' fees and costs.
4. Such other or further relief as the Court may deem appropriate.

Dated: March 18, 2015
Bronx, New York

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By: .
JUSTINE R. GRAY, ESQ.